



NON-DISCLOSURE AGREEMENT (NDA)
NDA ID: NCC-191124

This Non-Disclosure Agreement (the “Agreement”) is made and effective November 19th, 2024.

BETWEEN: **NEPHROCAN INC.** (the “Disclosing Party”), a corporation organized an existing under the laws of British Columbia, Canada, with its head office located at:

940 – 1040 WEST GEORGIA STREET, VANCOUVER, B.C. CANADA V6E 4H1

AND: **RENAL CARE SOLUTIONS (PTY) LTD.** (the “Receiving Party”), a corporation organized and existing under the laws of Salt Rock of South Africa with his head office located at:

Unit 21, The Station, North Point Industrial Park, Shaka’s Head, Ballito 4420

[Individually referred as a “Party” and collectively referred to as the “Parties”]

WHEREAS the Receiving Party has been or will be engaged in the performance of work on manufacturing, sales and distribution of dialysis disposables, equipment, and machinery and in connection therewith will be given access to certain confidential and proprietary information; and

WHEREAS the Receiving Party and Disclosing Party wish to evidence by this Agreement the manner in which said confidential and proprietary material will be treated.

This Agreement has been concluded to define the rights and obligations of the Parties in relation to the confidential and proprietary information disclosed before, during and after the term of their financial dealings and business relationship.

NOW, THEREFORE, it is agreed as follows:

1. NON-DISCLOSURE OF CONFIDENTIAL INFORMATION

Both Parties understand and agree that each Party may have access to the confidential information of the other party. For the purpose of this Agreement, “Confidential Information” means proprietary and confidential information about the Disclosing Party’s (or its suppliers’) business and activities. Such information includes all business, financial, commercial, operational, technical, and other information marked or designated by such Party as “confidential” or

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“proprietary”. Confidential Information also includes information which, by the nature of the circumstances surrounding the disclosure, ought in good faith to be treated as confidential. For the purpose of this Agreement, Confidential Information does not include:

- A. Information that is currently in the public domain or that enters the public domain after the signing of this Agreement.
- B. Information a Party lawfully receives from a third party without restriction on disclosure and without breach of a non-disclosure obligation.
- C. Information that the Receiving Party knew prior to receiving any Confidential Information from the Disclosing Party.
- D. Information that the Receiving Party independently develops without reliance on any Confidential Information from the Disclosing Party.

Each Party agrees that it will not disclose to any third party or use any Confidential Information disclosed to it by the other Party except when expressly permitted in writing by the other Party. Each Party also agrees that it will take all reasonable measures to maintain the confidentiality of all Confidential Information of the other Party in its possession or control.

2. TERM

The term of this Agreement is 5 years from the date of execution by both Parties.

3. TITLE

The Receiving Party agrees that all Confidential Information furnished by the Disclosing Party shall remain the sole property of the Disclosing Party.

4. RIGHTS AND OBLIGATIONS OF THE PARTIES

In relation to disclosure of Confidential Information, the Parties agree and undertake that:

- A. All Confidential Information disclosed by the Disclosing Party to the Receiving Party shall be exclusively owned by the Disclosing Party.
- B. Any Confidential Information (information including but not limited to financial, commercial, technical, operational, administrative, legal, personnel information, all intellectual and industrial property rights and financial rights such as patents, licences and copyrights, databases, computer programs and their documents, encryption techniques, advertising and marketing plans, product plans, technical plans, business strategies, strategic alliances and partners, engineering data, data on products and services, valuations, costs, fees, all personal or other information relating to the customers,



suppliers and employees, all algorithms, methodologies, specifications, trade secrets, technical literature and invention ideas developed by the Disclosing Party) which may be disclosed to the Receiving Party verbally, in writing, graphically or in any other form shall be accepted as strictly confidential, acknowledged to be highly valuable, and shall only be disclosed to the other Party on the basis that the information shall be kept strictly confidential.

- C. Not use Confidential Information directly or indirectly, for a matter incompatible with or outside the purpose and scope of this Agreement.
- D. To keep and treat the Confidential Information revealed to it as its own confidential information, not to be disclosed partially or completely without prior written consent of the Disclosing Party to any third parties whatsoever, except to its managers and employees, provided that the Confidential Information is disclosed on a strict "need to know" basis and such employees and managers are already to an express duty of confidentiality.

5. DISCLAIMER

Nothing contained in this Agreement or in any Confidential Information constitutes any express or implied warranty of any kind. All representations or warranties, whether express or implied, including fitness for a particular purpose, merchantability, title, and non-infringement, are hereby disclaimed. Neither this Agreement, nor any Confidential Information shall create, nor shall be deemed to create a legally binding or enforceable Agreement or offer to enter into any business relationship.

6. NO LICENSE GRANTED

Neither Party, grants to the other any license, by implication or otherwise, to use any Confidential Information except as expressly provided in this Agreement.

7. COPIES

Any copies or reproduction of the Confidential Information disclosed by the Disclosing Party shall bear the copyright or proprietary notices contained in the original.

8. UNAUTHORIZED USE

Receiving Party shall promptly advise Disclosing Party in writing if it learns of any unauthorized use or disclosure of Confidential Information by any Receiving Party Personnel or former Receiving Party Personnel.



9. RETURN OF CONFIDENTIAL INFORMATION

Parties will return or destroy all tangible material embodying Confidential Information (in any form including without limitation, all summaries, copies, and excerpts of Confidential Information) promptly following the other Party's written request.

The Receiving Party is entitled to store a back-up copy of the Confidential information exclusively for due compliance with its statutory obligations under the laws and regulations applicable to it or orders of courts or other judiciary institutions having authority over the Receiving Party. In the event that the Receiving Party is required to disclose Confidential Information to a third party in accordance with this paragraph, it shall immediately notify the Disclosing Party and exert its best efforts to limit the relevant disclosure to the minimum level necessary.

10. INJUNCTIVE RELIEF

Receiving Party acknowledges that the use or disclosure of the Disclosing Party's Confidential Information in a manner inconsistent with this Agreement will cause the Disclosing Party irreparable damage, and that the Disclosing Party shall have the right to equitable and injunctive relief to prevent the unauthorized use or disclosure, and to such damages as are occasioned by such unauthorized use or disclosure.

11. MODIFICATIONS

This Agreement may be modified only by a contract in writing executed by the Party to this Agreement against whom enforcement of such modification is sought.

12. PRIOR UNDERSTANDING

This Agreement contains the entire agreement between the Disclosing Party and the Receiving Party with respect to the subject matter of the Agreement. It is intended as a final expression of Disclosing Party and Receiving Party's agreement with respect to such terms as are included in this Agreement and is intended as a complete and exclusive statement of the terms of such Agreement. This Agreement supersedes all negotiations, stipulations, understanding, agreements, representations, and warranties, if any, with respect to such subject matter which precede or accompany the execution of this Agreement.

13. WAIVER

Any waiver of a default under this Agreement must be made in writing and shall not be a waiver of any other default concerning the same or any other provision of this Agreement. No delay or omission in the exercise of any right or remedy shall impair such right or remedy or be constructed as a waiver. A consent to or approval of any act shall not be deemed to waive or render unnecessary consent to or approval of any other subsequent act.

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14. COMPLIANCE WITH LAW

The Receiving Party agrees to abide by all federal laws, provincial laws, ordinances, and regulations of the jurisdiction of the Disclosing Party and the Receiving Party.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first above written.

NEPHROCAN INC.
Disclosing Party

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Authorized Signature

Delaram Hajipour, CEO at NephroCan Inc.
Print Name and Title

RENAL CARE SOLUTIONS (PTY) LTD.
Receiving Party

A handwritten signature in black ink, appearing to read "Grant Stewart".

Authorized Signature

Grant Stewart, Operations Director
Print Name and Title

NEPHROCAN INC.

Suite 940 - 1040 West Georgia Street
Vancouver, BC V6E 4H1
Tel: +1 (604) 922-3110
Fax: + 1 (604) 922-3160

A handwritten signature in black ink, appearing to read "Grant Stewart".